

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Pearce	Team: Team # 1	CCRB Case #: 201014588	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/20/2010 11:50 PM	Location of Incident: Between East 169th Street and East Clarke Place on the Grand Concourse	18 Mo. SOL 4/20/2012	Precinct: 44
Date/Time CV Reported Sun, 10/24/2010 4:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 10/24/2010 4:38 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Michael Greaney	20646	947762	PBBX
3. SGT Gabriel Diaz	00588	925411	PBBX
4. POF Crystal Ziegler	18704	947633	PBBX
5. POM Justino Brito	25120	948310	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Greaney	Abuse: PO Michael Greaney stopped § 87(2)(b)	A . Exonerated
B . POM Michael Greaney	Abuse: PO Michael Greaney searched § 87(2)(b)	B . Exonerated
C . POM Michael Greaney	Force: PO Michael Greaney used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Justino Brito	Force: PO Justino Brito used physical force against § 87(2)(b)	D . Exonerated
E . Officers	Force: Officers used physical force against § 87(2)(b)	E . Exonerated
F . POF Crystal Ziegler	Force: PO Crystal Ziegler used physical force against § 87(2)(b)	F . Unfounded
G . SGT Gabriel Diaz	Abuse: PO Gabriel Diaz did not obtain medical treatment for § 87(2)(b)	G . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the Call Processing System on October 24, 2010. On October 10, 2010, at approximately 11:50PM, § 87(2)(b) was seated in the back of a southbound livery taxi on the Grand Concourse in the Bronx. When he was stopped at a vehicle safety checkpoint installed at the intersection of East 169th Street and the Grand Concourse by PO Michael Greaney of the 44th Precinct Impact Response Team, the following allegations resulted:

Allegation A-Abuse of Authority: PO Michael Greaney stopped § 87(2)(b)

Allegation B-Abuse of Authority: PO Michael Greaney searched § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that allegations A and B be **exonerated**.

Allegation C-Force: PO Michael Greaney used physical force against § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that allegation C be **unsubstantiated**.

Allegation D-Force: PO Justino Brito used physical force against § 87(2)(b)

Allegation E-Force: Officers used physical force against § 87(2)(b)

§ 87(2)(g)

. Therefore, it is recommended that allegations D and E be **exonerated**.

Allegation F-Force: PO Crystal Ziegler used physical force against § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that allegation F be **unfounded**.

Allegation G-Abuse of Authority: Sgt. Gabriel Diaz did not obtain medical treatment for

§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that allegation G be **unsubstantiated**.

§ 87(2)(g)

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Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b), and has brown hair and brown eyes.

CCRB Testimony

The undersigned interviewed § 87(2)(b) at the CCRB on November 4, 2010 (encl. 9 A-N).

§ 87(2)(g)

§ 87(2)(b). On October 20, 2010, at approximately 11:50PM, § 87(2)(b) had just left the apartment belonging to the mother of his children, located within § 87(2)(b) § 87(2)(b) after having spent the entire day there. (He had arrived early that morning to take his son and daughter to school.) § 87(2)(b) entered a southbound Blue Lincoln Town Car livery taxi—§ 87(2)(b) did not obtain the name of the affiliated taxi company—that he had flagged at the southwestern corner of § 87(2)(b) § 87(2)(b) and the § 87(2)(b) § 87(2)(b). § 87(2)(b) made no stops and spoke with no one during his passage from the apartment to the taxi. He instructed the driver, whom § 87(2)(b) described as a black male and who was identified by the investigation as § 87(2)(b) to take him to his home in Manhattan.

A police checkpoint had been installed near the well-lit intersection of the Grand Concourse and East 169th Street, and traffic was moving slowly as a consequence. A uniformed white or Hispanic male officer was ushering certain cars into the right lane for further inspection and interview, while permitting others to pass through in the center southbound lane. As § 87(2)(b) § 87(2)(b)'s taxi entered the checkpoint, the driver held up his “papers” for the officer, who signaled for the taxi to continue in the right lane.

The taxi passed this officer, but shortly afterwards another white male officer in uniform with close-cropped hair, later identified by the officer’s supervisor as PO Michael Greaney, approached the taxi from the front, signaled for the vehicle to stop, walked to its driver’s side, expressing no interest in the displayed “papers” of the driver, and went around the back of the vehicle to the rear passenger-side door. § 87(2)(b) § 87(2)(b)'s hands were visible during PO Greaney’s approach of the vehicle. PO Greaney instructed § 87(2)(b) to open the door, but because the driver controlled the lock, § 87(2)(b) replied that he could not. The driver unlocked the vehicle and PO Greaney instructed § 87(2)(b) to “step out [and] get against the car.”

§ 87(2)(b) § 87(2)(b) complied, and faced the car with his hands against it for the duration of the subsequent questioning and searching. PO Greaney asked § 87(2)(b) if he had previously been arrested, if he had a criminal history, where he was coming from, and what he had been doing beforehand. § 87(2)(b) explained that he was coming from his children’s mother’s apartment. PO Greaney did not request § 87(2)(b) § 87(2)(b)'s ID and did not frisk § 87(2)(b) though his hands entered § 87(2)(b) § 87(2)(b)'s right-front pants’ pocket almost immediately after § 87(2)(b) § 87(2)(b) exited the taxi. PO Greaney began removing items from this pocket: keys, lip balm, and a small, colorful, knitted “religious pouch.” PO Greaney then placed his fingers into the small coin pocket above the pocket that had been searched, and removed a balled-up plastic Ziploc bag; PO Greaney “said it was ten bags of crack cocaine.” § 87(2)(b) § 87(2)(b) did not see what PO Greaney did with the bag after it was removed from his pocket.

PO Greaney then placed a hand on the left side of § 87(2)(b) § 87(2)(b)'s face, near his ear, and began repeatedly striking the right side of § 87(2)(b) § 87(2)(b)'s head against the car, into the area where the trunk meets the back windshield. At some point while he was striking § 87(2)(b) § 87(2)(b)'s head against the vehicle, PO Greaney placed one handcuff on § 87(2)(b) § 87(2)(b)'s right wrist. PO Greaney then pulled § 87(2)(b) § 87(2)(b) off of the car and threw him to the ground. § 87(2)(b) § 87(2)(b) landed directly on his right kneecap, inducing severe swelling and pain that now requires § 87(2)(b) § 87(2)(b) to use a cane. The taxi then left the scene.

PO Greaney demanded that § 87(2)(b) “stop resisting,” though § 87(2)(b) alleged that he was compliant throughout their encounter. § 87(2)(b) lay on the ground on his stomach, and PO Greaney began striking him with his hands and feet. An unknown number of additional officers arrived—their points of origin were unknown, as § 87(2)(b)’s vantage was limited, though in his phone statement, § 87(2)(b) estimated that there were approximately six of them—and joined PO Greaney in hitting and kicking § 87(2)(b). § 87(2)(b) never heard PO Greaney call for assistance. The officers struck § 87(2)(b) all over his body. § 87(2)(b) could only describe one of the officers striking him, a short, heavysset, white female with blond hair, identified by the investigation as PO Crystal Ziegler of the 44th Precinct Impact Response Team; he said with confidence that all other officers were male, and all were in uniform.

§ 87(2)(b) heard Sgt. Gabriel Diaz of the 44th Precinct Impact Response Team, who later identified himself to § 87(2)(b) say, “That’s enough—nobody else hit him.” Officers ceased striking § 87(2)(b) and PO Greaney placed the second handcuff on § 87(2)(b)’s left wrist. § 87(2)(b) was escorted to a marked van by Sgt. Diaz and an unidentified officer, and Sgt. Diaz searched § 87(2)(b) before placing him in the van, which was located at the intersection of East 169th Street and the Grand Concourse. § 87(2)(b) was in the van for two or three minutes before he heard Sgt. Diaz say, “Take him out, he’s moving too much.” He was then removed from the van and searched again by Sgt. Diaz, and was escorted to a marked car by Sgt. Diaz and a “captain”—§ 87(2)(b) mentioned the latter’s “white shirt”—who was identified by the investigation as Lt. Enrique Rodriguez of the 44th Precinct Impact Response Team. § 87(2)(b) was placed in the backseat of the marked car. Sgt. Diaz told him that once checkpoint was concluded, he would be taken to the stationhouse.

Sgt. Diaz later drove § 87(2)(b) to the 44th Precinct stationhouse, and told him, to “relax and calm down.” § 87(2)(b) replied, “I’m compliant. You already have me in handcuffs, my legs hurt, I’m asthmatic, where’s my treatment for my medical needs? Because I’m hurt.” (There was an ambulance that arrived at the checkpoint, but it was not intended for § 87(2)(b). § 87(2)(b) received no medical treatment until he went to § 87(2)(b) on § 87(2)(b), after he was released.) When § 87(2)(b) asked when he would be able to receive medical treatment, Sgt. Diaz told him, “Once you get processed,” though he never received medical treatment until seeking it after his release. § 87(2)(b) was processed at the stationhouse, where he remained for no more than one hour before being taken to Bronx Central Booking. In his phone statement and original complaint narrative, § 87(2)(b) did not mention this request for medical treatment nor Sgt. Diaz’s failure to obtain it.

Photographs

- § 87(2)(b) provided and described time-stamped photographs of his injuries to the undersigned, all of which were taken by the mother of his children on October 21, 2010 (encl. 9 I-M). The photographs show bruising in his right temple, significant swelling in his right knee and leg, swelling in his left wrist, and barely visible bruising on his right upper-arm and the backside of the middle of his right leg.

Arrest Photograph

- § 87(2)(b)’s arrest photo shows slight bruising in the vicinity of his right temple, § 87(2)(g) (encl. 9 F).

Statements to Medical Personnel

- § 87(2)(a) PBH §18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Witness:** § 87(2)(b)
§ 87(2)(b) is a § 87(2)(b) black male. At the time of this interview, § 87(2)(b) was a taxi driver.

The undersigned interviewed § 87(2)(b) over the phone on March 15 and March 16, 2011, and obtained additional information from him over the phone on April 12, 2011 (encl. 10 A-C). § 87(2)(g)
§ 87(2)(b) On October 20, 2010, at some time before midnight, § 87(2)(b) was driving southbound on the Grand Concourse in the Bronx in his black Lincoln Town Car taxi. There is no T.R.I.P. sticker on § 87(2)(b)'s vehicle, and he was not familiar with this sticker or with its affiliate program, Operation Safe Cab. (He stated that the only sticker on his vehicle is a TLC sticker on the passenger side of his front windshield.) He was hailed by an individual, whose name § 87(2)(b) did not obtain but who was identified by the investigation as § 87(2)(b) near the intersection of East 171st Street and the Grand Concourse. § 87(2)(b) picked up § 87(2)(b) in a service lane, as the Grand Concourse has many subdivisions.

§ 87(2)(b) described § 87(2)(b) as a black male, between 6'0" and 6'1", between 180 and 190 pounds, and he could not recall what § 87(2)(b) was wearing. § 87(2)(b) did not recall § 87(2)(b) having a bag with him. § 87(2)(b) was going to Harlem, and he sat in the rear passenger-side seat of the vehicle, where he remained for the duration of the ride. § 87(2)(b) never observed § 87(2)(b)'s hands during the ride, nor did he observe him making any movements with his hands in the vicinity of his own waistband. § 87(2)(b) drove southbound on the Grand Concourse and he moved into the express lane.

A vehicle checkpoint was installed approximately one block south of East 171st Street. § 87(2)(b) heard § 87(2)(b) say, "Oh, shit," as they approached the checkpoint. (This was the only thing § 87(2)(b) recalled § 87(2)(b) saying to him.) Traffic was moving very slowly at this time due to the checkpoint. A police officer standing on the driver's side of § 87(2)(b)'s vehicle gestured for § 87(2)(b) to continue, though shortly thereafter another officer, who was standing six or seven yards away from the passenger's side of the vehicle, signaled for § 87(2)(b) to stop. This officer was identified by the investigation as PO Greaney, though § 87(2)(b) did not obtain his name and § 87(2)(b) could not describe him, except that he may have been Hispanic. PO Greaney did not issue any verbal commands at this time. § 87(2)(b) stopped the vehicle.

PO Greaney approached the vehicle without ever crossing over to the driver's side. PO Greaney tried to open the rear passenger-side door, which the vehicle automatically keeps locked when the vehicle is in transit. § 87(2)(b) unlocked this door for PO Greaney, who opened the door and asked § 87(2)(b) where he had picked up § 87(2)(b). § 87(2)(b) said, "One block away." This was the only verbal exchange § 87(2)(b) had with PO Greaney. PO Greaney then removed § 87(2)(b) from the vehicle by "pulling" him out. After § 87(2)(b) had been removed, the door was closed, though the front passenger-side window remained slightly open, permitting § 87(2)(b) to hear intermittent portions of their verbal exchange. § 87(2)(b) never

exited his vehicle. § 87(2)(b) was standing next to the rear passenger-side door with his back to the vehicle, facing PO Greaney. PO Greaney asked § 87(2)(b) where he was coming from and where he was going.

§ 87(2)(b) watched this interaction through the rear passenger-side window. He never observed PO Greaney frisk or search § 87(2)(b). § 87(2)(b), however, did not observe PO Greaney make any physical contact with § 87(2)(b) until he began his attempt to handcuff him.

§ 87(2)(b) observed a “scuffle” ensue in which § 87(2)(b) said in a pleading tone, “Officer, officer.” § 87(2)(b) could not see clearly what was happening, but he saw that PO Greaney was attempting to place handcuffs on § 87(2)(b) who still had his back to the vehicle. Between three and five additional unidentified black and Hispanic male officers who had been standing within two or three yards of PO Greaney rushed over to assist him. (All of the officers on the scene were in uniform, and § 87(2)(b) did not recall any of them wearing white shirts. § 87(2)(b) could not describe any of them.) PO Greaney did not call out to the other officers for assistance. § 87(2)(b) and PO Greaney were still standing when these additional officers arrived. § 87(2)(b) could not clearly see or describe the manner in which § 87(2)(b) was resisting, although he was confident that § 87(2)(b) was physically resisting in some manner, and he could tell that the handcuffs had not yet been applied at that point.

Two unidentified officers whom § 87(2)(b) could not clearly see turned § 87(2)(b) around and struck his forehead against the rear windshield of the vehicle two or three times. He could not observe whether or not one of these officers was PO Greaney. (In his statement from March 15, 2011, § 87(2)(b) stated that this action occurred after § 87(2)(b) had been placed in handcuffs. § 87(2)(b) said in his subsequent statement that § 87(2)(b) was brought to his feet by officers and then attempted to kick the officers before being turned around and having his head slammed against the rear windshield.) § 87(2)(b) could not hear anything that the officers were saying during this time. § 87(2)(b) was then brought to the ground, placed in handcuffs, and taken to a police van.

In his statement from March 15, 2011, § 87(2)(b) said that these additional officers did not make physical contact with § 87(2)(b) before he was placed in handcuffs, however in his statement from March 16, 2011, he said that the officers made physical contact with § 87(2)(b) in order to bring him to the ground and restrain him. § 87(2)(b) could not specifically describe the force used to subdue § 87(2)(b). When § 87(2)(b) was on the ground, § 87(2)(b) could not see him or see what specifically the officers were doing—§ 87(2)(b) said that his vehicle is four or five feet “above the ground”—although he did not observe officers punch or kick § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

A female officer, whose name § 87(2)(b) did not obtain, whom he could not describe, and who was identified by the investigation as PO Ziegler, then approached § 87(2)(b)'s window and obtained his information. PO Ziegler was not involved in the struggle with § 87(2)(b) and § 87(2)(b) never observed her make physical contact with § 87(2)(b). § 87(2)(b) asked PO Ziegler what had happened, and she told him that the officers had “found something.” She then instructed § 87(2)(b) to leave.

NYPD Statements:

Subject Officer: PO MICHAEL GREANEY

- *PO Michael Greaney is a § 87(2)(b) white male with blue eyes and blonde hair, who is § 87(2)(b).*
- *PO Greaney worked in uniform with PO Richard McLees from 5:30PM on October 20, 2010, until 2:05AM on October 21, 2010. His assignment was Training Auto 3, and he was assigned to police van 5812.*

Memo Book

PO Greaney noted in his memo book that at 10:50PM he began working at a vehicle checkpoint located at East 169th Street and the Grand Concourse, and that at 12:35AM § 87(2)(b) was arrested after a taxi stop § 87(2)(b)

Arrest Report and UF-61 Complaint Report

The arrest report and UF-61 Complaint Report for § 87(2)(b) were written by PO Greaney (encl. 15 A-B and 16 A-C). The date, time, and location of the arrest are listed as October 21, 2010, at 12:35AM, at the northwest corner of the Grand Concourse and East 169th Street. § 87(2)(b) received four charges § 87(2)(b)

§ 87(2)(b)'s physical condition is listed as “apparently normal.” The arrest report notes that physical force was used to prevent escape.

CCRB Testimony

PO Greaney was interviewed at the CCRB on February 8, 2011 (encl. 17 A-C). On October 20, 2010, at approximately 11:50PM, PO Greaney was stationed at a vehicle safety checkpoint at East 169th Street and the Grand Concourse. The checkpoint culminated just north of this intersection on the west side of the Grand Concourse, where all southbound vehicles were forced to pass through a coned area and their drivers displayed their driver’s licenses. Sgt. Gabriel Diaz was the supervisor, and there were between eight and ten additional officers present, though PO Greaney could not recall who they were. PO Greaney’s solitary post was located at the southern end of the checkpoint on the passenger side of the coned area. The area was well lit by streetlamps, and PO Greaney did not need a flashlight.

PO Greaney noticed a black Lincoln Town Car livery taxi approaching the coned area, and he observed § 87(2)(b) preparing to display his driver’s license. PO Greaney saw § 87(2)(b) in the rear passenger-side seat. PO Greaney could not recall what § 87(2)(b) was wearing. PO Greaney also noticed a T.R.I.P. sticker on the rear passenger-side window. PO Greaney explained that a T.R.I.P. sticker indicates a taxi’s participation in “Operation Safe Cab,” a program designed “to reduce robberies and assaults on taxi drivers.” The sticker “means that the driver gives permission for officers to check the vehicle for their safety,” and that the drivers “understand that you’re going to pull them over to do routine safety checks.”

As the taxi approached the end of the checkpoint, PO Greaney observed § 87(2)(b) making a “stuffing” motion with both hands in the vicinity of his right pants pocket or waistband. PO Greaney, who was standing six feet away from the taxi at this time, said that he had no visual access to § 87(2)(b)'s waistband region during the taxi’s approach—though he could see his arms moving in the direction of his waist, he could not see what, if anything, was being “stuffed.”

§ 87(2)(b) never bent over as PO Greaney was approaching. Other than this motion, PO Greaney did not observe anything suspicious about § 87(2)(b)'s behavior, though PO Greaney stated that when “people [are] reaching towards their waistband, [and] cops [are] approaching, you don’t know if they’re trying to hide something; I didn’t know what he had.”

PO Greaney approached the taxi from the passenger side and had no interaction with § 87(2)(b) who said nothing during PO Greaney’s encounter with § 87(2)(b). PO Greaney opened the rear passenger side door. § 87(2)(b) had ceased to make the stuffing motion when PO Greaney opened this door. PO Greaney noticed a small bulge in front-right pocket, with a plastic bag protruding. PO Greaney instructed § 87(2)(b) to step out of the vehicle, and placed § 87(2)(b)'s hands against the side of the vehicle, on the passenger side of the trunk.

PO Greaney performed a frisk that included § 87(2)(b)'s shoulders and waist. PO Greaney’s right hand passed over and entered the front-right coin pocket of § 87(2)(b)'s pants—this is the pocket that contained the visible top of a plastic bag—and he removed a small, generic, “plastic baggie housing a smaller amount of smaller plastic bags” containing crack cocaine. PO Greaney did not specify whether or not this bag was a glassine envelope. This was the only pocket PO Greaney entered during this initial frisk and search. PO Greaney did not feel anything else during the frisk. PO Greaney did not suspect § 87(2)(b) of having drugs before approaching vehicle, and he said that he did not know what to expect during the frisk but that he “was checking for safety.”

When § 87(2)(b) noticed that PO Greaney had recovered the plastic bag, he attempted to run southbound, but only managed to move approximately one foot before PO Greaney restrained him. PO Greaney restrained him by reaching beneath both of § 87(2)(b)'s arms and locking his hands behind § 87(2)(b)'s head. PO Greaney “rocked” backwards as § 87(2)(b) pushed forwards, and the two men fell onto the ground. As they were falling, § 87(2)(b)'s body made contact with the taxi, but PO Greaney could not recall which part of § 87(2)(b)'s body made contact with the vehicle, but speculated that it was likely in the vicinity of the trunk. This contact was unintentional. PO Greaney could not recall whether or not § 87(2)(b) landed on his knee before landing on his front.

PO Greaney attempted to handcuff § 87(2)(b) but § 87(2)(b) was wriggling his arms, trying to evade the handcuffs. PO Greaney said, “Stop resisting, show me your hands.... Give me your hands.” Officers at the checkpoint, whose names and locations PO Greaney could not recall, saw the struggle and came over to assist PO Greaney, holding § 87(2)(b)'s arms in place so that the handcuffs could be applied. PO Greaney’s attempt to handcuff § 87(2)(b) lasted “a few seconds.” After the handcuffs were applied, § 87(2)(b) was compliant. Aside from holding § 87(2)(b)'s arms, these unidentified officers used no other force against § 87(2)(b). PO Greaney used no other force against § 87(2)(b) aside from that described above. No officers kicked or punched § 87(2)(b) during this incident.

After § 87(2)(b) was effectively handcuffed, the taxi left the scene. § 87(2)(b) was placed in a police van by PO Greaney, and he remained in the van for two minutes before PO Greaney noticed him “fidgeting,” whereupon § 87(2)(b) was removed from the van. PO Greaney patted the inside of § 87(2)(b)'s leg and felt a large bag, which he shook and which then emerged at the bottom of § 87(2)(b)'s pant-leg. PO Greaney had not noticed this bulge during the initial frisk. The bag contained 190 small bags of crack cocaine. PO Greaney did not remove § 87(2)(b)'s pants in order to recover the bag.

§ 87(2)(b) was then placed in the back of an RMP, where he waited for twenty minutes before being taken to the 44th Precinct stationhouse by Sgt. Diaz. § 87(2)(b) did not seem intoxicated. PO Greaney filled out the arrest paperwork at the stationhouse. PO Greaney did not observe any injuries, marks, bruises, or bleeding on § 87(2)(b) during or after this encounter. § 87(2)(b) did not complain of injuries, and PO Greaney was not aware of § 87(2)(b) complaining of injuries to other officers.

Subject Officer: SGT. GABRIEL DIAZ

- Sgt. Gabriel Diaz is a § 87(2)(b) male with brown eyes and brown hair, who is § 87(2)(b).
- Sgt. Diaz worked in uniform as Impact sergeant with PO Wilfredo Benitez from 5:15PM on October 20, 2010, until 2:12AM on October 21, 2010. He was assigned to RMP 3149, and he was supervising a vehicle checkpoint.

Memo Book

Sgt. Diaz noted in his memo book that on October 20, 2011, at 10:00PM, he began working at a vehicle and that 12:30AM there were six individuals under arrest from the location (encl. 11 A-B).

UF-49 Unusual Occurrence Report

The UF-49 for this checkpoint states that a vehicle safety checkpoint was installed at East 169th Street and the Grand Concourse at approximately 10:30PM on October 20, 2010, under the supervision of Lt. Enrique Rodriguez and Sgt. Diaz (encl. 12 A-B). PO Steven Ramunno, PO Benitez, PO Greaney, PO Erica Francis, PO Justino Brito, and PO Ziegler were assigned to this checkpoint. The form notes that § 87(2)(b) was arrested § 87(2)(b). Six individuals were arrested at the checkpoint in total.

CCRB Testimony

Sgt. Diaz was interviewed at the CCRB on February 1, 2011 (encl. 13 A-D). § 87(2)(g) Sgt. Diaz was supervising the vehicle safety checkpoint. 44th Precinct Impact officers were pulling over every other southbound vehicle. Sgt. Diaz was stationed approximately 60 feet south of the entrance to the checkpoint, where PO Michael Greaney was standing. Sgt. Diaz was the only supervisor on the scene.

Sgt. Diaz did not observe the incident with § 87(2)(b) until he heard PO Greaney yell, “Stop resisting,” and observed him engaged in an altercation with § 87(2)(b) whom he was attempting to place under arrest. Sgt. Diaz had “no idea” why PO Greaney had instructed § 87(2)(b) to exit the livery taxi. Sgt. Diaz observed PO Greaney push § 87(2)(b) against the livery taxi at the beginning of this struggle. Sgt. Diaz observed § 87(2)(b) move his arms in a swinging motion in order to prevent himself from being handcuffed. § 87(2)(b) was facing PO Greaney, and Sgt. Diaz observed § 87(2)(b) push PO Greaney.

Sgt. Diaz and two other officers whom Sgt. Diaz could not describe and whose names he could not recall (PO Benitez was possibly among them, though Sgt. Diaz could not say this with certainty) went to assist PO Greaney. The three officers helped PO Greaney restrain § 87(2)(b) by pulling him to the ground simultaneously, and PO Greaney immediately handcuffed him. Sgt. Diaz was commanding § 87(2)(b) to place his hands behind his back and to stop

resisting during this time. None of the officers punched or kicked § 87(2)(b). Once § 87(2)(b) was on the ground, he did not resist and was compliant. Sgt. Diaz did not see PO Greaney strike § 87(2)(b)'s face against the livery taxi. No force was used other than the holds used to restrain § 87(2)(b) and bring him to the ground.

§ 87(2)(b) was placed in the back of RMP 3149, where he waited for approximately 20 minutes before being taken to the 44th Precinct stationhouse for processing. Sgt. Diaz drove § 87(2)(b) to the stationhouse unaccompanied; during the drive, § 87(2)(b) did not complain of injuries, did not appear injured, and did not have any visible marks or bruises. At no point while in Sgt. Diaz's company did § 87(2)(b) request medical treatment.

Subject Officer: PO CRYSTAL ZIEGLER

- PO Crystal Ziegler is a § 87(2)(b) white female with brown eyes and red hair, who is § 87(2)(b).
- On October 20, 2010, PO Ziegler worked in uniform with PO Julio Jimenez and PO Manuel Diclo from 5:30PM until 2:05AM the following morning. Her assignment was 44th Precinct foot patrol.

Memo Book

PO Ziegler noted in her memo book that at 11:00PM on October 20, 2010, she responded to East 169th Street and the Grand Concourse regarding a vehicle checkpoint. She also noted her arrival at 44th Precinct stationhouse at 12:30AM the following morning, to assist with the six individuals placed under arrest at the checkpoint (encl. 18 A-D).

CCRB Testimony

PO Ziegler was interviewed at the CCRB on February 24, 2011 (encl. 19 A-B). § 87(2)(g)

§ 87(2)(b) PO Ziegler was handing the licenses of passing drivers to Sgt. Diaz, who was running the licenses from inside a police van with Lt. Rodriguez. PO Ziegler's responsibilities at this time included ensuring that all drivers' and passengers' seatbelts were fastened and determining whether the drivers of passing cars were intoxicated.

As PO Ziegler was standing near the police van, she observed § 87(2)(b) approximately one block to the north, in the vicinity of East Clarke Place on the east side of the Grand Concourse, running northbound as officers chased him. PO Ziegler was not sure which officers were chasing § 87(2)(b) and she did not hear these officers issuing any commands to him. PO Ziegler ran to assist them. PO Ziegler did not see the officers at the moment when they became physically engaged with § 87(2)(b) nor did she observe the means by which § 87(2)(b) was brought to the ground, restrained, and placed in handcuffs. PO Ziegler arrived within one minute—PO Ziegler estimated that § 87(2)(b) ran approximately one block before he was apprehended—and because § 87(2)(b) had been effectively handcuffed at this time, she approached and took down the information of the taxi from which § 87(2)(b) had fled. (PO Ziegler noted this information on the fly sheet of her memo book and which contained § 87(2)(b)'s name and address.) PO Ziegler did not in any way assist in the restraining of § 87(2)(b) nor did she exchange any words with him. PO Ziegler did not see which of the officers handcuffed § 87(2)(b).

After § 87(2)(b) was placed in handcuffs and picked up, PO Ziegler observed him twisting his body, resisting the officers. She did not observe PO Greaney physically engaged with § 87(2)(b).

§ 87(2)(b) while in the immediate vicinity of the taxi, and she did not observe PO Greaney striking § 87(2)(b)'s head against the taxi. PO Ziegler never observed officers punch or kick § 87(2)(b). PO Ziegler never heard § 87(2)(b) complain of injuries, and he did not appear injured at the time of his arrest.

Subject Officer: PO JUSTINO BRITO

- PO Justino Brito is a § 87(2)(b) Hispanic male with brown eyes and brown hair, who is § 87(2)(b).
- On October 20, 2010, PO Brito worked in uniform with PO Amaury Gonzalez from 5:30PM until 2:05AM the following morning. His assignment was 44th Precinct footposts nine and ten.

Memo Book

PO Brito noted in his memo book that at 10:30PM, his post was changed to a vehicle checkpoint installed at East 169th Street and the Grand Concourse (encl. 20 A-C).

CCRB Testimony

PO Brito was interviewed at the CCRB on March 3, 2011 (encl. 21 A-C). § 87(2)(g)
§ 87(2)(b) PO Brito was shuttling the licenses of passing motorists over to his supervisors, who were parked between fifteen and twenty feet south of him. PO Greaney was standing between twenty and thirty feet north of PO Brito, where vehicles were entering the checkpoint.

PO Brito noted that § 87(2)(b) arrived at the checkpoint in a livery taxi. PO Brito did not observe a T.R.I.P. sticker on this taxi. § 87(2)(g)
§ 87(2)(b) PO Brito stated that he observed § 87(2)(b) exit the vehicle of his own accord and that he observed § 87(2)(b) and PO Greaney speaking while facing one another, but at various points during this interview he repeatedly stated that his first observation of PO Greaney's interaction with § 87(2)(b) occurred after PO Greaney had begun his attempt to restrain § 87(2)(b). § 87(2)(g)
§ 87(2)(b)

PO Brito was giving a license to his supervisors in the van, between thirty and forty feet south of PO Greaney's position, when his attention was drawn by PO Greaney's loud command, "Stop resisting! Stop resisting! Stop resisting!" PO Brito could see that PO Greaney and § 87(2)(b) were standing at this time. PO Brito never saw PO Greaney physically engaged with § 87(2)(b) in the immediate vicinity of the livery taxi, and he never saw PO Greaney push § 87(2)(b)'s head into the vehicle. PO Brito immediately ran towards PO Greaney, and the supervisors drove towards PO Greaney in their van. As PO Brito ran over to them, he broke his line of vision with PO Greaney, as there were many cars separating them.

PO Greaney and § 87(2)(b) were between five and ten feet from the taxi when PO Brito arrived on the scene. PO Brito could not account for their distance from the taxi. § 87(2)(b) was face-down on the ground at this point and his hands were tucked into his chest in an effort to resist being handcuffed. § 87(2)(b) was also wriggling his body. PO Brito did not see when or how § 87(2)(b) was brought to the ground. When PO Brito reached PO Greaney, between two and three unidentified officers and Sgt. Diaz and Lt. Rodriguez were already present, and the unidentified officers were assisting PO Greaney, attempting to free § 87(2)(b)'s hands so that

PO Greaney could handcuff him. PO Brito observed PO Greaney on § 87(2)(b)'s right side, and he could not recall what physical force PO Greaney was using to untuck § 87(2)(b)'s hands. PO Brito did not see PO Greaney punch § 87(2)(b) and he did not recall PO Greaney kicking § 87(2)(b). PO Brito did not see the unidentified officers kick or punch § 87(2)(b). PO Brito did not recall his supervisors issuing any commands during this time.

PO Brito physically assisted PO Greaney in restraining § 87(2)(b) but he could not recall what physical force he used to help PO Greaney restrain § 87(2)(b). He could not recall any of the maneuvers used by himself or PO Greaney by which § 87(2)(b)'s hands were brought behind his back. PO Brito definitely did not kick § 87(2)(b) he did not recall punching § 87(2)(b). When § 87(2)(b)'s hands had been freed, PO Greaney applied the handcuffs. The only resistance to arrest that PO Brito observed was § 87(2)(b)'s folding of his hands into his chest and wriggling while lying face-down on the ground.

When PO Brito was asked about § 87(2)(b)'s demeanor after he had been placed in handcuffs, PO Brito said that he was “very upset” because he believed that PO Greaney did not have a reason to stop him. PO Brito could not recall anything more specific about what § 87(2)(b) had said, but he did recall that § 87(2)(b) was cursing. § 87(2)(b) was then placed in the police van—PO Brito could not remember by whom—and that was the last time that PO Brito saw him. § 87(2)(b) did not appear injured, nor was PO Brito aware of § 87(2)(b) complaining of injuries or requesting medical treatment for such injuries. PO Brito never saw any officer speaking with § 87(2)(b).

PO Brito overheard PO Greaney explaining the stop of § 87(2)(b) to Sgt. Diaz after the arrest had been effected. According to PO Brito's limited recollection, PO Greaney stopped the livery taxi and observed § 87(2)(b) in the back seat. § 87(2)(b) lowered the back window, and PO Greaney observed § 87(2)(b) stuffing something into his pockets. (PO Greaney did not specify what he believed was being stuffed.) PO Greaney asked § 87(2)(b) to step out of the car, and PO Greaney “asked him if he had anything on him.” § 87(2)(b) replied, “No, no, no.” PO Greaney said, “Do you mind if I frisk you?” § 87(2)(b) said, “Sure,” whereupon PO Greaney frisked § 87(2)(b).

Members of Service Not Interviewed

- § 87(2)(g) [REDACTED]

Medical Records

- § 87(2)(a) PBH §18(6) [REDACTED]

NYPD Documents

Vehicle Checkpoint Form

- The Vehicle Checkpoint Form for this checkpoint states that “a vehicle safety checkpoint was conducted in the Impact Zone in an accident prone location,” and the corner of East 169th Street and the Grand Concourse. Lt. Rodriguez, Sgt. Gabriel Diaz, PO Ramunno, PO Benitez, PO Greaney, PO Francis, PO Brito, and PO Ziegler were the members of service assigned to this checkpoint. The checkpoint was installed at this location for one and one-half hours, during which “every vehicle” was stopped. 32 vehicles were stopped,

§ 87(2)(b)

Sprint Print-Out

- A sprint beginning at 12:28AM on October 21, 2010, indicates that six individuals are under arrest by the 44th Precinct Impact sergeant at East 169th Street and the Grand Concourse.

Sprint Recording

- The communications CD pertaining to the above sprint captures the impact sergeant notifying the dispatcher of the arrests at the location.

Command Log

- The command log entry pertaining to § 87(2)(b)'s arrest notes that § 87(2)(b) was arrested with \$48.00 on his person. His physical condition is listed as “apparently normal.”

Roll Call

- The relevant roll call indicates that all officers listed in the Vehicle Checkpoint Form and UF-49 were working at the time of this incident.

Arrest for Incident and Disposition

- Case number § 87(2)(b) remains open. The next scheduled court date is § 87(2)(b) in Bronx County Supreme Court (encl. 27 B).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 13, 2011, with regard to the incident (encl. 30 H).

■ [REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]
■ [REDACTED]
[REDACTED]
[REDACTED]

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 6 A).

- PO Greaney has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2 A-B).
- Sgt. Diaz has been a member of the service for ten years and there is one substantiated CCRB allegation against him (encl. 3 A-B). Sgt. Diaz received instructions for a stop in CCRB case number 200612602.
- PO Brito has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 4 A).
- PO Ziegler has been a member of the service for two years and there are no substantiated CCRB allegations against her (encl. 5 A).

Conclusion

PO Greaney was § 87(2)(b)'s arresting officer, and he acknowledged his encounter with § 87(2)(b). § 87(2)(b) identified Sgt. Diaz by name, and Sgt. Diaz also acknowledged interacting with § 87(2)(b) during his supervision of the checkpoint. § 87(2)(b) alleged that a heavyset white female with blonde hair used physical force against him. Though PO Ziegler denied physical and verbal engagement with § 87(2)(b), § 87(2)(g) § 87(2)(b), and she herself acknowledged being in his vicinity after he had been restrained. § 87(2)(g) according to the UF-49 and the Vehicle Checkpoint Form, PO Erica Francis was the only other female officer on the scene and she is black. § 87(2)(g) § 87(2)(b) PO Brito acknowledged his involvement in the restraining of § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: PO Michael Greaney stopped § 87(2)(b)

Allegation B-Abuse of Authority: PO Michael Greaney searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) No other officers interviewed during the investigation observed PO Greaney's approach and subsequent stop of § 87(2)(b) PO Greaney alleged that § 87(2)(b)'s hands were out of view during his approach, though he could see by the movement of his arms that he was engaged in a "stuffing" motion in the vicinity of his waistband. PO Greaney could not see what, if anything, was being "stuffed." Although he did not observe anything else suspicious about § 87(2)(b)'s behavior, he did believe that § 87(2)(b) was trying to hide something when he realized an officer was approaching him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) could not see § 87(2)(b)'s hands during this time and therefore did not observe § 87(2)(b) making any stuffing movements with his hands. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Greaney stated that § 87(2)(b) had ceased to make the stuffing motion when PO Greaney opened the car door. Upon opening the door, PO Greaney observed a small bulge in § 87(2)(b)'s front-right pants pocket, with a plastic bag protruding. Though § 87(2)(b) did not admit that this bag contained crack cocaine, he stated that it was a balled-up plastic Ziploc bag.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that PO Greaney began removing items from his front-right pants pocket almost immediately after he exited the taxi, before entering the small, front-right coin pocket and removing a Ziploc bag. PO Greaney alleged that after § 87(2)(b) placed his hands against the taxi, he performed a frisk of § 87(2)(b) for his safety, during which he ran his right hand over the bulge he observed in the front-right coin pocket of § 87(2)(b)'s pants. He then removed the source of the bulge, a small "plastic baggie housing a smaller amount of smaller plastic bags" containing crack cocaine. This was the only pocket PO Greaney entered during this search.

According to the four levels of street interactions established by *People v. De Bour*, "an officer can forcibly stop and detain a person when the officer has a reasonable suspicion that the person has committed, is committing, or is about to commit a felony" (encl. 1 A-B). *De Bour* states that a stop requires reasonable suspicion that the individual in question "is committing, has committed or is about to commit" a crime. § 87(2)(g)

§ 87(2)(b). In *People v. Davila*, the Bronx County Supreme Court determined that an officer had the reasonable suspicion necessary to frisk the defendant, a passenger in a vehicle stopped for a VTL violation, after the officer noticed him "looking down towards his feet,... furtively, with his hands pushing something down his waistband," ordered him to exit the vehicle, and observed a "crease line bulge towards his right groin area in the upper thigh" (encl. 1 C-J). The search of an individual's pockets requires probable cause. The NYPD's

“Street Encounters—Legal Issues” memo book insert states that “probable cause requires the existence of facts and circumstances which when viewed together, would lead a reasonable person possessing the expertise of the arresting officer to conclude that an offense has been committed” (encl. 1 L).

§ 87(2)(g)

it is recommended that allegations A and B be **exonerated**.

Allegation C-Force: PO Michael Greaney used excessive physical force against § 87(2)(b)

Allegation D-Force: PO Justino Brito used physical force against § 87(2)(b)

Allegation E-Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after PO Greaney recovered the Ziploc bag, PO Greaney placed a hand on the left side of § 87(2)(b)'s face, near his ear, and began repeatedly striking the right side of his head against the area of the car where the trunk meets the back windshield. § 87(2)(b) claimed that he never resisted PO Greaney's attempts to restrain him. PO Greaney stated that § 87(2)(b) attempted to flee, and that a struggle ensued during which PO Greaney fell to the ground with § 87(2)(b) while holding him. PO Greaney stated that § 87(2)(b)'s body made contact with the taxi, likely near the trunk. PO Greaney could not, however, recall which part of § 87(2)(b)'s body made contact with the vehicle. PO Greaney emphasized that this contact was inadvertent and incidental to the fall. § 87(2)(b) alleged that two officers whom he could not clearly see struck § 87(2)(b)'s forehead against the rear windshield of his taxi two or three times. He could not determine whether or not one of these officers was PO Greaney. ■

§ 87(2)(g) In his statement from March 15, 2011, § 87(2)(b) stated that the striking of § 87(2)(b)'s head against the taxi occurred after he had been placed in handcuffs; in § 87(2)(b)'s subsequent statement he said that § 87(2)(b) was brought to his feet by officers, and that he attempted to kick the officers before being turned around and having his head slammed against the rear windshield. No officers interviewed by the investigation recalled this action.

§ 87(2)(a) PBH §18(6) His arrest photo and the photos he provided show bruising to his right temple. § 87(2)(g)

§ 87(2)(b) alleged that after PO Greaney struck his face against the taxi, PO Greaney threw him to the ground and six unidentified officers came over and kicked him and hit him all over his body while he had one wrist handcuffed. § 87(2)(b) alleged that he was not resisting at all, and that PO Greaney's commands to "stop resisting" were disingenuous. § 87(2)(b) landed on his right kneecap, and this impact induced severe swelling and pain. § 87(2)(g)

§ 87(2)(b) PO Greaney could not recall whether § 87(2)(b) landed on his knee as he brought him to the ground.

§ 87(2)(a) PBH §18(6) § 87(2)(b) The time-stamped photographs provided by § 87(2)(b) from October 21, 2010, show significant swelling in his right knee and leg. § 87(2)(g)

§ 87(2)(g) Patrol Guide 203-11 authorizes officers to use "only that amount of force necessary to overcome resistance" when effecting an arrest (encl. 1 M-N). § 87(2)(g) it is recommended that allegations D and E be **exonerated**. § 87(2)(g) it is recommended that allegation C be **unsubstantiated**.

Allegation F-Force: PO Crystal Ziegler used physical force against § 87(2)(b)
§ 87(2)(b) alleged that PO Ziegler was among the officers who kicked and punched him while he was on the ground. PO Ziegler denied physical and verbal engagement with § 87(2)(b) and she claimed that she arrived in his immediate vicinity after he had been effectively restrained. PO Ziegler claimed that her responsibility during the arrest of § 87(2)(b) was obtaining § 87(2)(b)'s information. § 87(2)(b) confirmed that PO Ziegler took down his information, and he stated that PO Ziegler was not physically involved in the restraining of § 87(2)(b). § 87(2)(g) it is recommended that allegation F be **unfounded**.

Allegation G-Abuse of Authority: Sgt. Gabriel Diaz did not obtain medical treatment for § 87(2)(b)
§ 87(2)(b) alleged that he requested medical treatment from Sgt. Diaz as he was being driven to the 44th Precinct stationhouse, and that Sgt. Diaz replied, "Once you get processed," though Sgt. Diaz did not ultimately obtain medical treatment for § 87(2)(b). Sgt. Diaz alleged that § 87(2)(b) never complained of injuries, did not appear injured, and did not have any visible

marks or bruises during this time. Sgt. Diaz alleged that § 87(2)(b) never requested medical treatment while in his presence. § 87(2)(g)

Therefore, it is recommended that allegation I be **unsubstantiated**.

Team: _____

:

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date